

building in sufficient operational independence from partisan hands-on control. Or, alternatively, the parties may need to turn to a third candidate.

The Court understands that it is unrealistically optimistic to suppose that the parties can work out every detail of an interim compromise between 1:30 Wednesday afternoon and 9:00 Thursday morning. However, the Court intends to set the parties on that path of discussion, and to inquire as to how long it may take. A further hearing date for the pending motion can be set accordingly.

The Court also takes the opportunity to observe that there are at least two other sets of interested parties involved in this overall dispute that may well have some interests to be protected – and in any event may well have critically useful, neutral input for the Court’s guidance. Namely, those are the DSS, and the lenders. The Court extends an invitation for them, if they see fit, to involve themselves directly in this litigation, by formal intervention if appropriate, or at least by friend-of-the-court input.

4. 9:00 AM CASE NUMBER: MSN15-2146

CASE NAME: KUYKENDALL VS TINER

SETTLEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

Parties and counsel to appear for settlement conference. See also Line 1.

5. 9:00 AM CASE NUMBER: C23-02855

CASE NAME: YVONNE THOMPSON VS. SAFEAMERICA CREDIT UNION

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

The report of disbursements is **approved**. The administrator may proceed with the remaining disbursements.

6. 9:00 AM CASE NUMBER: C23-02941

CASE NAME: ABRAHAM GOLZARY VS. ANASTASIA MARTINEZ

***HEARING ON MOTION FOR DISCOVERY DEEM ADMISSIONS ADMITTED, SET ONE AS TO DEFENDANT JOSE LUIS HUERTA**

FILED BY: GOLZARY, ABRAHAM

TENTATIVE RULING:

Judgment has been entered in this case.

7. 9:00 AM CASE NUMBER: C24-00481

CASE NAME: STEVE STROOT VS. NATHAN SIMARRO

HEARING ON SUMMARY MOTION ADJUDICATION PUNITIVE DAMAGES

FILED BY:

TENTATIVE RULING:

Before the Court is the motion of Defendant Nathan Simarro for summary adjudication of Plaintiffs' claim for punitive damages. The motion is opposed by Steve Stroot, Alison Stroot, and Steve Stroot as guardian *ad litem* for minors Logan Stroot and Gwendolyn Stroot.

Defendant moves for summary adjudication on the grounds that there are no material allegations of fact sufficient to support a finding of fraud, oppression, or malice as required to support a claim of punitive damages under Civil Code section 3294.

Plaintiffs oppose this motion on the grounds that evidence raises triable issues of material fact precluding summary adjudication.

For the following reasons, Defendant's motion for summary adjudication is **DENIED**. In summary: There is no evidence here suggesting that Defendant acted intentionally or under actual ill will, nor that he was under the influence or the like. However, there is significant evidence casting doubt on his own account of how the accident occurred. Plaintiffs overstate the available legal grounds for punitive damages. However, the case law establishes that in circumstances like this case, punitive damages do not necessarily require such aggravating factors as driving under the influence, let alone any actual, conscious intentionality or ill will. However, conscious disregard of safety can suffice. Whether unintentional conduct, causing an accident like this one, can rise to the level of malice required for punitive damages is a question that, on the evidence here, cannot be determined by summary judgment, but must be left to trial.

I. Evidentiary Matters

The Court need only rule on those objections to evidence that were material to the disposition of the motion for summary adjudication. (Code Civ. Proc., § 437c.)

Objection No. 1 (traffic collision report – hearsay): **SUSTAINED**

Objection No. 2 (traffic collision report – foundation): **SUSTAINED**

Objection No. 3 (apology note – hearsay): The Court declines to rule on this objection. The evidence is not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).)

II. Factual Allegations

The Stroots own a single-family home at 1900 Susan Lane, in Pleasant Hill. (Compl. at 4.) Susan Lane is a residential street intersected by Doris Drive, which is a business street. (*Ibid.*) Doris Drive and Susan Lane meet in a T-intersection that is controlled by a single stop sign with a limit line and "STOP" clearly painted on the street with no obstructions. (*Ibid.*) 1900 Susan Lane sits at the end of that T-intersection, and its driveway sits opposite the intersection's stop sign. (*Ibid.*)

The Stroots allege that they were at home on January 5, 2024, at 6:30 p.m., when they allege that Defendant Simarro ran the stop sign at Susan Lane and Doris Drive and drove his 2023 Rivian R1T truck into their home "at an extreme rate of speed." (Compl. at 4-5.) Plaintiffs allege the collision "completely destroy[ed] the garage, cars that were parked there, and destroy[ed] valuable possessions of the family." (Compl. at 4.) The collision also severed an active gas line and created a gas leak in the home. (*Ibid.*)

The investigating officer summarized Simarro's statement at the scene as follows:

[Simarro] was driving westbound on Doris Drive when he approached the T

intersection of Doris Drive and Susan Lane. [Simarro] came to a complete stop at the stop sign. When he lifted his foot off the brake, it slipped behind the brake causing him to press harder onto the gas, which accelerated him across the intersection at a high rate of speed. [Due] to his foot being stuck behind the brake he was unable to stop the vehicle until it was too late and he rear ended [one of the two vehicles] located in the driveway, pushing it into the garage.

(Compl. at 4.)

Simarro, in his declaration, states that he was driving on Doris Drive toward Susan Lane at a rate of speed between 25 and 35 miles per hour on the night of the collision. (Simarro Dec. ¶ 4.) He states that:

Somehow, my foot accidentally got stuck on the accelerator of the Rivian near Plaintiffs' home which caused me to accelerate to approximately 45 miles per hour. Due to my foot being stuck on the accelerator, I was unable to slow my vehicle prior to entering the intersection and ended up crashing into Plaintiff's vehicle and ultimately into Plaintiffs' home.

(Simarro Dec. ¶¶ 5-6.)

In response to form interrogatory 17.1, Simarro stated that he “attempted to stop at the stop sign, but his foot became stuck.” (Def. Exhibits, Exhibit 2 at Interrogatory No. 17.1.)

Plaintiffs allege that video of the collision captured by a Tesla in the area and collected as evidence by the investigating officer, shows that, contrary to Simarro’s statement to the investigating officer that he made a complete stop at the intersection, Simarro did not stop at the stop sign at Susan Lane and Doris Drive. (Compl. at 5; PLN Exhibits, Exhibit 5 ¶ 9.)

The investigating officer cited Simarro with a violation of California Vehicle Code section 22450(a) for failing to stop at the stop sign. (Compl. at 4; Veh. Code, § 22450.)

Paul Jacobs, who is an expert in forensic imaging and analysis hired by Plaintiffs, opines based on his analysis of the Tesla video that Simarro’s vehicle did not stop or even slow down at the stop sign. (PLN Exhibits, Exhibit 5 ¶¶ 1, 22-23, 29.) Mr. Jacobs opines that there is no indication that the brake lights turned on or off at any point in the video and “[b]ased upon the constant velocity and lack of negative acceleration, it appears that the brakes were not activated prior to the crash.” (*Id.* at ¶¶ 27-28.) The Court’s own examination of the video supports this analysis.

III. Summary Adjudication Legal Standard

A party may move for summary adjudication as to one or more claims for damages if the party contends that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code. (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of the claim for damages. (*Ibid.*) A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

To succeed on a motion for summary adjudication, a defendant must conclusively negate a necessary element of the plaintiff's case and demonstrate that under no hypothesis embodied in the complaint is there a material issue of fact that requires the process of a trial. (*Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107; *Kelleher v. Empresa Hondurena de Vapores, S.A.* (1976) 57 Cal.App.3d 52, 58.)

“[T]he party moving for [summary adjudication] bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “When the defendant moves for [summary adjudication] and makes a *prima facie* showing that one or more elements of the plaintiffs’ cause of action cannot be established, the burden shifts to the plaintiff to make a *prima facie* showing that the element in question can be established.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

There exists a triable issue of material fact if the evidence, viewed in the light most favorable to the opposing party, is such that a reasonable trier of fact could find the underlying fact in favor of the opposing party by the applicable standard of proof. (*Aguilar*, 25 Cal.4th at 850, *Reader’s Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 252.) “When deciding whether to grant [summary adjudication], the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi*, 159 Cal.App.4th at 467.) “A court generally cannot resolve questions about a declarant’s credibility in a summary judgment proceeding.” (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1065.)

IV. Budra Declaration

As a preliminary matter, the Court addresses the Declaration of Michael K. Budra submitted in support of Defendant’s motion. Budra declares that Plaintiffs, “did not include any facts alleging” intent to injure or conduct constituting fraud, oppression, or malice. (Budra Dec. ¶¶ 3-6.) These statements are not factual assertions within the declarant’s personal knowledge but rather legal conclusions about the sufficiency of Plaintiffs’ evidence. Whether the record contains evidence sufficient to create a triable issue of material fact as to malice, oppression, or fraud under Civil Code section 3294 is a determination for the Court on this motion. The Budra declaration’s conclusions on that question are not evidence and are not given weight in the Court’s analysis. The Court’s determination of the sufficiency of the Plaintiffs’ evidence is based on its independent review of the entire record.

V. Analysis

A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of contract where it is proven by clear and convincing evidence that the defendant has been guilty of malice, oppression, or fraud. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; (Civ. Code, § 3294(a).) Subdivision (c) of that section provides:

As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive

damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “There must be an intent to vex, annoy or injure. Mere spite or ill will is not sufficient; and mere negligence, even gross negligence is not sufficient to justify an award of punitive damages.” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).)

“Malice” required by California Civil Code § 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations omitted).) To establish malice, a plaintiff must demonstrate that the defendant was “aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Id.* at 895-896.) “[A] conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code.” (*Ibid.*) “We suggest *conscious disregard of safety* as an appropriate description of the *animus malus* which may justify an exemplary damage award when nondeliberate injury is alleged.” (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 32 (emphasis in original).)

A. Defendant Meets His Initial Burden.

A defendant moving for summary adjudication may meet its initial burden by showing that the plaintiff cannot establish one or more elements of the challenged claim. (*Aguilar*, 25 Cal.4th at 851; *McGonnell v. Kaiser Gypsum Co.* (2002) 98 Cal.App.4th 1098, 1103-1104.)

Here, Defendant meets his initial burden. Simarro, in his declaration and response to interrogatories, states that he was traveling between 25 and 35 miles per hour on Doris Drive when his foot got stuck on the accelerator of his Rivian causing the vehicle to accelerate to approximately 45 miles per hour going into the intersection at Susan Lane. (Simarro Dec. ¶¶ 4-5; Def. Exhibits, Exhibit 1 at Interrogatory No. 20.8.) Because his foot was stuck on the accelerator, he states he was unable to slow the vehicle going into the intersection, causing his vehicle to collide with the Stroots’ home. (Simarro Dec. ¶ 6.)

This showing is sufficient to establish a *prima facie* case that Plaintiffs cannot prove malice, oppression, or fraud under Civil Code section 3294. The burden therefore shifts to Plaintiffs to demonstrate a triable issue of material fact. (*Avivi*, 159 Cal.App.4th at 467.)

B. Plaintiffs Raise a Triable Issue of Material Fact as to Malice.

Simarro’s account of the collision has two components: that he attempted to stop at the stop sign, and that his foot accidentally became stuck on the accelerator, causing him to accelerate into the intersection and ultimately into the Stroots’ home. (Def. Exhibits, Exhibit 2 at Interrogatory No. 17.1; Simarro Dec. ¶¶ 4-5.) Critically, Simarro does not merely claim his foot became stuck, he specifically states that this caused him to accelerate from between 25 and 35 miles per hour, up to approximately 45 miles per hour, prior to entering the intersection. (Simarro Dec. ¶¶ 4-5.)

Plaintiffs submit the declaration of Paul Jacobs, an expert in forensic imaging and video analysis, who conducted a frame-by-frame analysis of Tesla dashcam video of the collision captured from a vehicle traveling southbound on Susan Lane toward the intersection collected as evidence by police. (PLN Exhibits, Exhibit 5 ¶¶ 1-2, 15.) Mr. Jacobs opines that Simarro’s vehicle was in constant motion between the first frame in which it appears and the frame in which it first contacts a vehicle in the Stroots’ driveway, and that there are no objective signs of acceleration. (*Id.* ¶¶ 22-24.) He states that the video shows the vehicle has a constant velocity throughout, although he did not offer an opinion as to the approximate speed of the vehicle. (*Id.* ¶ 22-25.) Mr. Jacobs further opines that there is no indication at any point in the video that the brake lights changed condition, and, based on the

constant velocity and lack of negative acceleration, the brakes were not activated prior to the crash. (*Id.* ¶¶ 27-28.) The Jacobs declaration directly contradicts Simarro's claim in his declaration that his foot became stuck on the accelerator and caused the Rivian to accelerate from 25-35 miles per hour up to approximately 45 miles per hour. (*Id.* ¶ 24.) The un rebutted forensic evidence shows no such acceleration occurred. (*Ibid.*)

The Jacobs declaration creates a conflict in the evidence that cannot be resolved at the summary adjudication stage. Simarro states that his foot became stuck on the accelerator and caused the Rivian to accelerate from 25-35 miles per hour to approximately 45 miles per hour. Mr. Jacobs' forensic analysis of the same event shows constant velocity and no objective signs of acceleration. Those two accounts cannot both be true, and the question of which to credit is one for the trier of fact. (*AARTS Productions, Inc.*, 179 Cal.App.3d at 1065.)

If the trier of fact credits the Jacobs declaration over Simarro's account, the remaining record presents the following: a sober, unimpaired driver operating a Rivian pickup truck drove through a clearly marked, unobstructed residential stop sign at a T-intersection – where a home sat directly across from the stop sign – without braking at all, and then lied to the investigating officer about having stopped at the stop sign afterward. (Compl. at 4-5; PLN Exhibits, Exhibit 5 ¶¶ 27-29; Simarro Dec. ¶ 6.) Nothing in the record otherwise explains why Simarro did not stop or slow down. There is no evidence of a mechanical defect in Simarro's vehicle. (Def. Exhibits, Exhibit 1 at Interrogatory Nos. 20.09, 20.10.) There is nothing in the record to indicate that Simarro was under the influence of drugs or alcohol or was otherwise impaired at the time of the collision.

In *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, the Court of Appeal considered whether the conduct of an intoxicated driver who ran a stop sign and caused a fatal collision could support a finding of malice under Civil Code section 3294. The plaintiffs in *Dawes* alleged not only that the defendant drove while intoxicated, but that he ran a stop sign, zig-zagged in and out of traffic at speeds in excess of 65 miles per hour in a 35-mile-per-hour zone near a crowded recreation area on a Sunday afternoon, and that immediately after the collision, the defendant and his passenger falsely reported to police that the passenger, not the defendant, had been driving. (*Dawes*, 111 Cal.App.3d at 89-90.) The court there held that those specific factual allegations, taken together, were sufficient to support a malice finding if proved at trial. (*Id.* at 89.)

The court in *Dawes* quoted with approval the following from a law review article written by Justice Franson:

'[Allegations] of intoxication, excessive speed, driving with defective equipment or the running of a stop signal, without more, do not state a cause of action for punitive damages.

On the other hand, if the facts show that the defendant intentionally drove his vehicle at a high speed into an intersection crowded with pedestrians, or if he drove at a high speed through a crowded residential area where children were playing in the street, a legitimate inference of actual malice perhaps could arise. *This would be particularly true if the defendant had not been drinking, or, if drinking, he was not under the influence to the point where he was incapable of being aware of the situation confronting him.* Under these circumstances, it reasonably might be said that the defendant acted in such an outrageous and reprehensible manner that the jury could infer that he knowingly disregarded the substantial certainty of injury to

others.’

(*Dawes*, 111 Cal.App.3d at 90, quoting Franson, *Exemplary Damages in Vehicle Accident Cases* (1975) 50 State Bar J. 144, 148, fn. omitted) (emphasis added).)

The facts here are not identical to *Dawes*; there is no evidence that the intersection was crowded or that children were present on the street. But the Franson passage quoted with approval in *Dawes* is illustrative, not exhaustive. The court did not hold that a conscious disregard inference is available only where those precise circumstances exist. Rather, *Dawes* stands for the broader proposition that a stop sign violation, combined with additional specific facts beyond the violation itself, can support a malice finding – particularly where the driver was sober and unimpaired. A trier of fact could reasonably find by clear and convincing evidence that that combination of additional specific facts is present here.

Nothing in the record establishes that Simarro was intoxicated at the time of the collision, placing this case squarely within the sober-driver scenario the *Dawes* court identified as particularly susceptible to a conscious disregard inference. Beyond sobriety, the record shows a driver who passed through a clearly marked, unobstructed residential stop sign without braking, whose claimed explanation for the collision is directly contradicted by un rebutted forensic evidence, and who, further, gave a false account of the collision to the investigating officer – a specific post-incident fact that the *Dawes* court identified itself as supporting a malice inference. (*Dawes*, 111 Cal.App.3d at 89.)

Moreover, the geometry of this particular intersection made the risk of harm not merely foreseeable but virtually certain given that 1900 Susan Lane sits directly across from the stop sign, such that any vehicle passing through without stopping or turning was on a direct path into the structure.

Viewed in the light most favorable to the non-moving party, a reasonable trier of fact could find by clear and convincing evidence that Simarro acted with conscious disregard of the rights and safety of others within the meaning of “malice” under Civil Code section 3294(c)(1). (*Aguilar*, 25 Cal.4th at 850; *Avivi*, 159 Cal.App.4th at 467; *G. D. Searle & Co.*, 49 Cal.App.3d at 32; *Taylor*, 24 Cal.3d at 895-896.)

C. Plaintiffs Raise a Triable Issue of Material Fact as to Oppression.

Oppression under Civil Code section 3294(c)(2) requires despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. As discussed *ante*, the record presents a triable issue as to whether Simarro’s conduct was despicable and carried out with conscious disregard of the rights and safety of others. The same evidence that creates a triable issue under malice likewise creates a triable issue under oppression.

The record also contains substantial evidence of cruel and unjust hardship. Plaintiffs’ responses to special interrogatories detail, among other things, forced displacement from their home for an extended period, multiple relocations through temporary housing, aggravation of Mrs. Stroot’s pre-existing hip injury, aggravation of Mr. Stroot’s pre-existing PTSD with documented symptoms including chronic insomnia, and significant uninsured financial losses including out-of-pocket expenses, veterinary bills, and costs associated with multiple moves. (Def. Exhibits, Exhibits 3 and 4.)

A reasonable trier of fact could find by clear and convincing evidence that Plaintiffs were subjected to cruel and unjust hardship in conscious disregard of their rights within the meaning of Civil Code section 3294(c)(2).

D. Plaintiffs Do Not Raise a Triable Issue of Material Fact as to Fraud.

Plaintiffs present no triable issue as to fraud under Civil Code section 3294(c)(3). Fraud requires an intentional misrepresentation, deceit, or concealment of a material fact made with the intention of thereby depriving a person of property or legal rights, or otherwise causing injury. The allegedly false account Simarro gave to the investigating officer about stopping at the stop sign does not meet this definition. That statement was made after the collision had already occurred and therefore cannot have been made with the intent to cause the collision or the resulting property damage. Nor is there any evidence in the record that the false statement was made with the intent to deprive Plaintiffs of any legal rights. The false account is relevant to the malice analysis, as discussed *ante*, but it does not independently support a finding of fraud under Civil Code section 3294(c)(3).

E. Gross Negligence is Not the Standard for Punitive Damages.

Plaintiffs' opposition devotes considerable attention to the doctrine of gross negligence. (See generally MPA in OPPOSITION to Def MSJ.) Gross negligence, however, is not the operative standard for a punitive damages claim under Civil Code section 3294. Gross negligence has been defined as either an "extreme departure from the ordinary standard of conduct" or a "want of even scant care." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186.) While gross negligence may exceed ordinary negligence in degree, it remains a negligence standard and does not require the willful and conscious disregard of the rights and safety of others that Civil Code section 3294 demands. As the court stated in *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, "...mere negligence, even gross negligence is not sufficient to justify an award of punitive damages." (*Ebaugh*, 22 Cal.App.3d at 894 (emphasis in original).)

The Court's denial of this motion is based on the triable issues of material fact as to malice and oppression under Civil Code section 3294, not on Plaintiffs' gross negligence analysis.

F. Conclusion

Defendant's motion for summary adjudication is **DENIED**. The declaration of Paul Jacobs creates a triable issue of material fact as to whether Simarro's conduct constituted despicable conduct carried out with willful and conscious disregard of the rights and safety of others within the meaning of malice under Civil Code section 3294(c)(1), and oppression under Civil Code section 3294(c)(2).

8. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

*HEARING ON MOTION IN RE: TO FILE RECORDS UNDER SEAL

FILED BY: QUAN, LEROY M.

*TENTATIVE RULING:

Defendant's motion for leave to file financial information under seal is unopposed and it is **granted**.

9. 9:00 AM CASE NUMBER: C25-00060

CASE NAME: MARIO ZITO VS. GRETCHEN LACAYO-CODUS

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM AND SPECIAL INTERROGATORIES

FILED BY: ZITO, MARIO ANTHONY

TENTATIVE RULING: